

*Mr. Harold A. Black*, with whom *Messrs. Farnham P. Griffiths* and *Allan P. Matthew* were on the brief, for respondent.

MR. CHIEF JUSTICE STONE delivered the opinion of the Court.

The question is whether, in the absence of the adoption of any guiding policy by the Executive branch of the government, the federal courts should recognize the immunity from a suit in rem in admiralty of a merchant vessel solely because it is owned though not possessed by a friendly foreign government.

Respondent, owner and master of the *Lottie Carson*, an American fishing vessel, filed a libel in rem in the district court for southern California against the *Baja California*, her engines, machinery, tackle and furniture, for damage alleged to have been caused when the *Baja California* negligently caused her tow to collide with the *Lottie Carson* in Mexican waters. The Mexican Ambassador to the United States, acting in behalf of his government, thereupon filed in the district court a suggestion that the *Baja California* at all times mentioned in the libel and at the time of her seizure was owned by the Republic of Mexico and in its possession, and engaged in the transportation of cargoes between the ports of the Republic of Mexico and elsewhere. Libellant put in issue the allegations of the suggestion that title to the *Baja California* was at any time in the Mexican government and denied that she was in that government's possession, public service or use. Trial of these issues proceeded upon stipulated evidence.

In the meantime the United States Attorney for the District, acting under the direction of the Attorney General, filed in the district court a communication from the Secretary of State to the Attorney General, in which the State Department called attention to the claim of the Mexican government, already detailed. The Department